

Causation

Professor Suzanne Chiodo

Tuesday, October 6, 2026

Introduction

- Causation is sometimes known as ‘cause in fact’ (especially in the US, where it is distinguished from ‘proximate cause’ – ie remoteness)
- This stage of the negligence enquiry asks, “was the defendant’s conduct the cause of the plaintiff’s loss?”
- The burden of proof here is on the plaintiff, on a balance of probabilities (more than 50% likelihood)
- If, on a balance of probabilities, D caused P’s loss, then D must pay 100% of the damages
- Much of the confusion in causation arises from mixing up proof of causation and amount of damages payable

‘But For’

- Causation is usually determined on the ‘but for’ test: but for the defendant’s conduct, would the plaintiff have been injured?
- This looks simple, but it can be complex, because the court has to apply a counterfactual

Barnett v Chelsea Hospital (UK 1968)

- What happened?
- The court found a duty of care and a breach of that duty – but what did they find on causation?



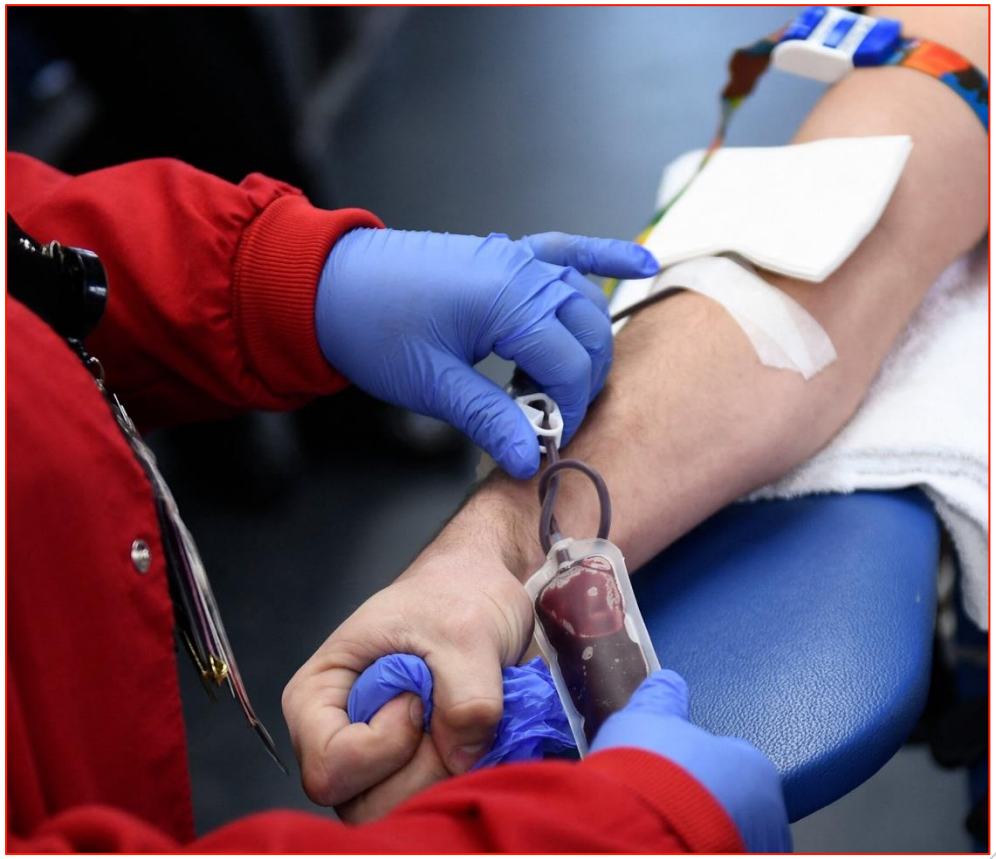
Arndt v Smith, [1997] 2 SCR 539

- What happened?
- What was the counterfactual the plaintiff (P) claimed?
- Court asked: what would a reasonable person in P's circumstances have done in this situation?
- What was the court's answer, and why?



Walker v York General, [2001] 1 SCR 647

- What happened?
- How was D held to have breached the standard of care?
- What was the counterfactual that D claimed?
- What did the court find on causation?



Blackstock v Foster (NSW 1958)

- What were the two potential causes of the plaintiff's injury?
- What did the court decide?
- Why?



Variations on 'But For'

- 'But for' will sometimes work an injustice – why?
- Canadian courts have struggled with this, and the case law is confusing
- The main variation in Canada is the 'material contribution to harm' test (which is really not a variation at all)
- The Supreme Court of Canada has accepted the 'material contribution to risk' approach, but it is for very exceptional cases

Material Contribution to Harm

- D's act does not have to be the only cause, or even the predominant cause, of P's damage
- As long as D's act was a necessary contributing cause, D will be fully liable
- So if it is proven (on a balance of probabilities) that D was a cause of the loss, then they will be 100% liable for that loss
- Do you think this is fair?

(a) Multiple Tortious Causes

- *Lambton v Mellish* (UK 1894)
  - What happened?
  - What was D's defence?
  - What did the Court decide, and why?
- *Baker v Willoughby*, [1970] AC 467 (HL)
  - What happened?
  - What was D's defence?
  - What did the Court decide, and why?



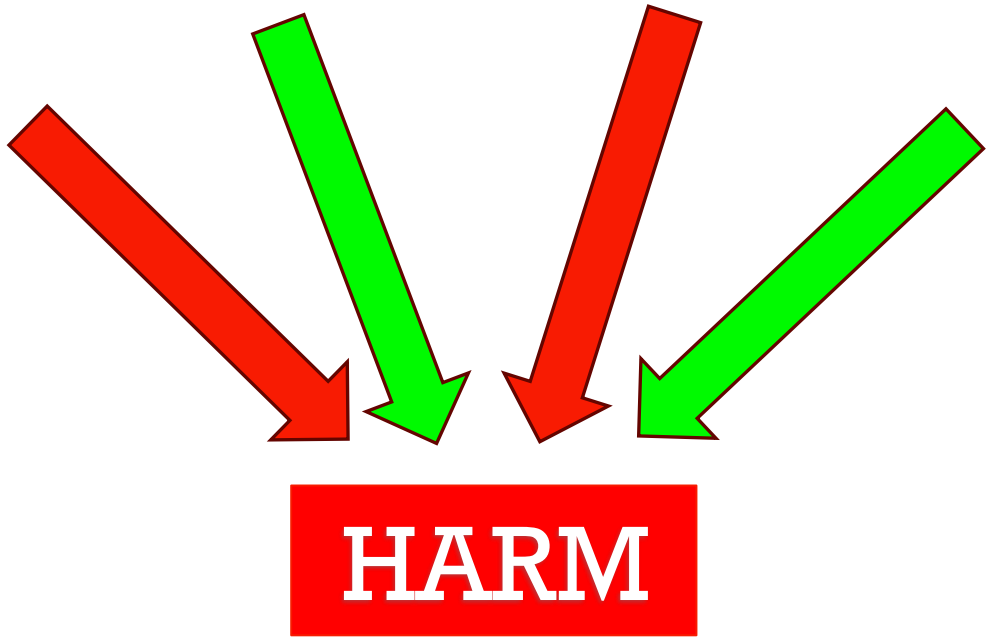
(a) Multiple Tortious Causes (continued)

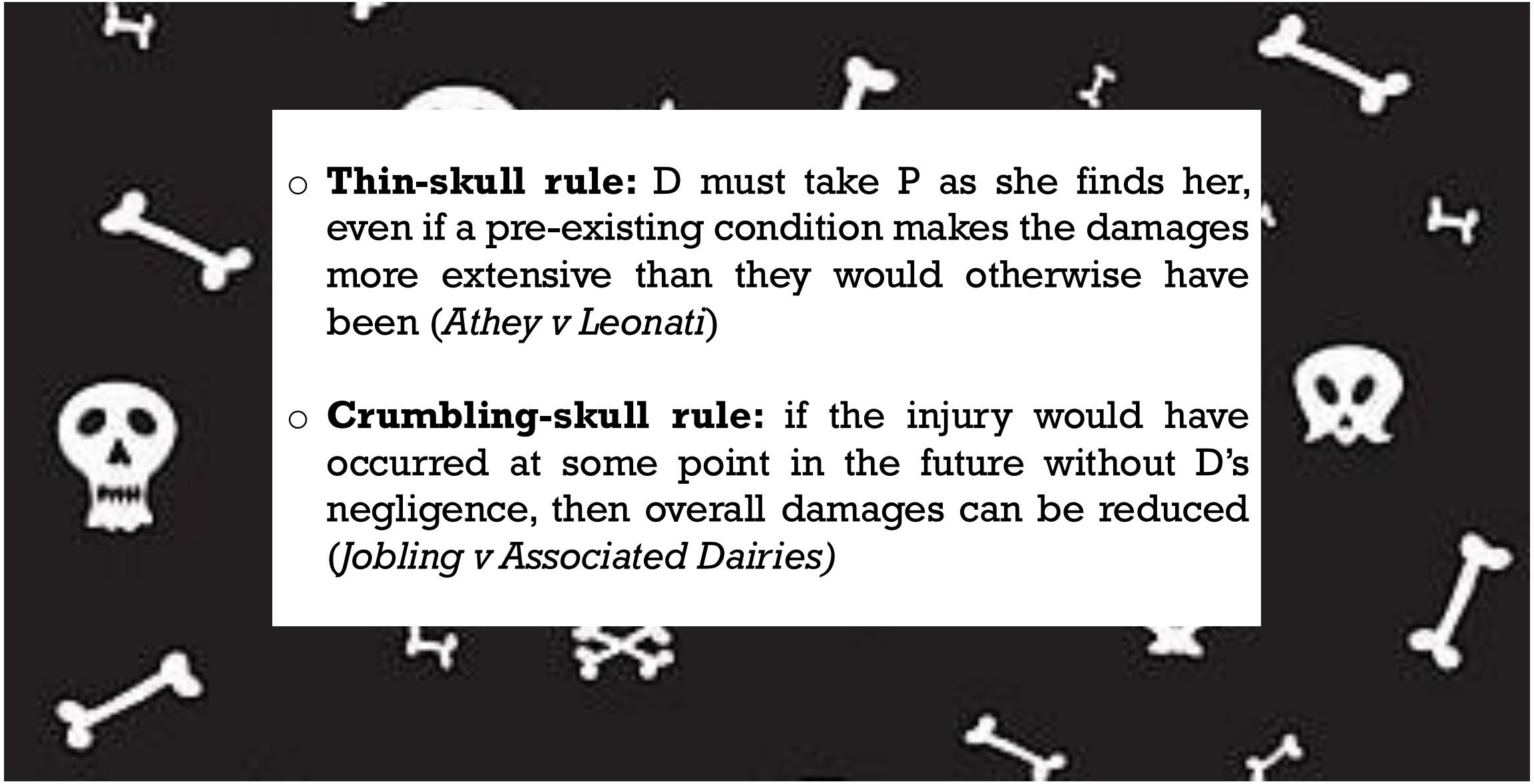
- *Negligence Act*, RSO 1990, c N1, s 1
  - Allows apportionment between tortfeasors
  - Ds can seek contribution & indemnity from each other
  - Each D remains fully liable to P



(b) Tortious and Non-Tortious Causes

- *Athey v Leonati*, [1996] 3 SCR 458
  - What happened?
  - What did the trial judge find?
  - Why did the SCC say this was incorrect?
  - Why not apportion liability between tortious and non-tortious causes?





- **Thin-skull rule:** D must take P as she finds her, even if a pre-existing condition makes the damages more extensive than they would otherwise have been (*Athey v Leonati*)

- **Crumbling-skull rule:** if the injury would have occurred at some point in the future without D's negligence, then overall damages can be reduced (*Jobling v Associated Dairies)*

Material Contribution to Risk

- This requires P to prove that D negligently created a risk, and that her damage fell within the scope of that risk
- D can then rebut this by showing that its acts did not cause P's harm
- England has accepted this in limited cases (especially asbestos cases)
- Canada has also accepted this for exceptional circumstances (*Clements v Clements*)

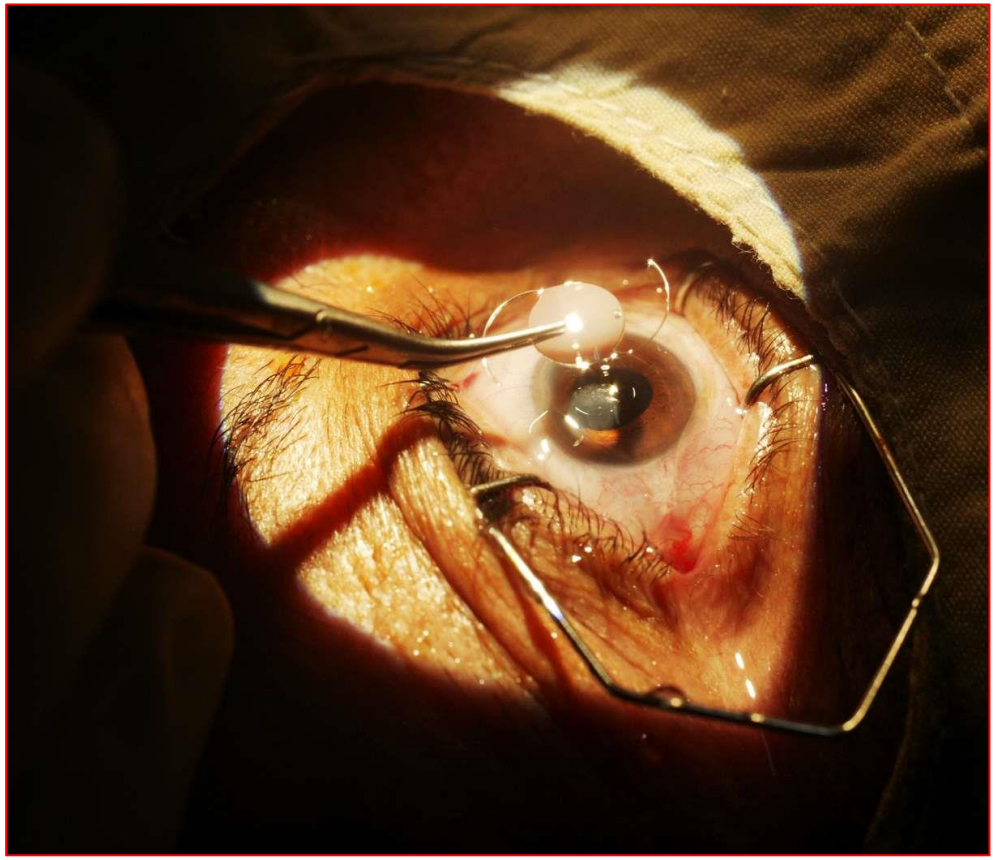
McGhee v National Coal (UKHL, 1972)

- What happened?
- What was the non-tortious cause?
- What was the tortious cause?
- What did the House of Lords say?
- What did Lord Wilberforce say?
- Who do you agree with?



Snell v Farrell, [1990] 2 SCR 311

- What happened?
- What was the non-tortious cause?
- What was the tortious cause?
- What did the trial judge say?
- What did the SCC say?
- Did the SCC end up applying the material contribution to risk approach?



Resurfice Corp v Hanke, [2007] SCJ No 7

- What happened?
- What did the SCC decide?
- What did it say about 'but for'?
- What did it say about variations on 'but for'?
- What is missing from the Court's judgment?





Causation Part 2

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Clements v Clements, 2012 SCC 32

- What happened?
- What was the non-tortious cause?
- What were the tortious causes?
- What test did the trial judge apply?
- What test did the SCC say applied?
- What did it say about the material contribution to risk test?



Cook v Lewis, [1957] SCR 830

- What happened?
- What was the causation problem?
- How did the SCC resolve it?
- Is this a case of material contribution to harm, or material contribution to risk?



Difficult Issues in Causation

- Canada and other jurisdictions have had to grapple with difficult issues in causation – various solutions have been proposed, but (apart from material contribution to risk) they have largely not been recognized in Canada
- We will look at:
  1. Mesothelioma cases
  2. Market share liability
  3. Loss of chance

Mesothelioma Cases (UK)

- Two main diseases that result from asbestos exposure:
  - Asbestosis – cumulative exposure
  - Mesothelioma – can result from one asbestos fibre
- Why would mesothelioma cases raise difficult issues of causation?



Fairchild v Glenhaven Funeral (UK 2003)

- Defendants had each negligently exposed P to asbestos
- CA held them jointly & severally liable for P's mesothelioma
- Each had materially contributed to the risk of P contracting the disease
- Why did Court depart from precedent?



Market Share Liability (US)

- This is a US theory of causation – not used in Canada
- Created to address DES litigation
- DES was taken by pregnant mothers, and it caused cancer decades later in their female children
- Latency of harm caused difficult issues with proving causation



Sindell v Abbott Laboratories (Calif 1980)

- Ds would be found severally (individually) liable according to %age of their market share, unless they could show they could not have caused P's injuries
- As long as P joined manufacturers of a 'substantial share' of DES, injustice of shifting burden of proof would be diminished
- What was the Court's justification for this?
- What do you think of the dissent?
- How do these reflect theories of tort law?



Loss of Chance (UK & Canada)

- UK: *Gregg v Scott* (HL 2005)
  - What happened?
  - How did it affect P's chances of survival?
  - What did the trial judge say?
  - What did the majority say?
  - What did the dissent say?
- Canada: *Resler v Anglin* (2026)
  - What happened?
  - What did the dissent say about loss of chance?
  - What did it say about the test for loss of chance and the damages for it?
  - What do you think about the dissent's conclusions?

Injustice in Causation

- Kent Roach article discusses the injustice of causation with regard to Indigenous persons
- In the Indian Residential Schools (IRS) litigation, Indigenous people had to prove that their treatment at residential schools caused specific harm to them
- Causation rules generally work an injustice to Indigenous persons
- The ‘crumbling skull’ rule in particular works an injustice to Indigenous persons

Injustice in Causation (continued)

- Causation rules do not take into account Indigenous perspectives
- They are individualistic and discount collective responsibility for harms
- They rely on linear cause-and-effect modes of reasoning, which are largely Western
- Indigenous approaches consider multi-generational and collective harms, treaty violations, and loss of language, culture, and family attachment

Injustice of Crumbling Skull Rule

- Focuses solely on the *status quo ante*, rather than the injustice of that original position
- Puts plaintiffs on trial by examining the suffering they endure pre- and post-residential schools
- Allows Ds to argue that plaintiffs' family lives and choices post-residential schools meant they would have suffered damage anyway
- Allows Ds to argue that survivors were already damaged before they attended residential schools
- Allows Ds to argue that sexual abuse harms and statute-barred harms should be separated, so that Ds only have to pay for former
- Reduces damages, even where abuse is admitted
- Such arguments are inconsistent with the honour of the Crown

Next class:
Small Groups